

		Plaintiff's performance, (3) Williams's breach of the Guaranty, and (4) resulting damages in the amount of \$206,411. (Otero Decl., ¶¶ 4, 6, 8, and 9.) As to the 3rd cause of action, Plaintiff has demonstrated (1) the existence of the Guaranty with Axe 2.0; (2) Plaintiff performance; (3) Axe 2.0's breach of the Guaranty; and (4) resulting damages in the amount of \$206,411. (Otero Decl., ¶¶ 5, 6, 8, and 9.) Defendants have not opposed the Motion. Thus, summary judgement is proper because there is no dispute of material facts.
15	Trabuco Highlands Community Association v. Loeffler 2022-01297235 Motion to Expunge Lis Pendens	The motion of defendant Molly Loop, LLC, for an order expunging the lis pendens against certain residential property that it owns in Ladera Ranch that was recorded on January 12, 2023 and for an award of attorneys' fees is DENIED. The request of responding plaintiff Trabuco Highlands Community for an award of attorneys' fees is also DENIED. Discussion. In this consolidated action, defendant Molly Loop, moves in case no. 2022-01298111 for an order expunging the lis pendens against certain residential property that it owns in Ladera Ranch that was recorded on January 12, 2023. It also moves for an award of attorneys' fees of \$5980.00 incurred in bringing the motion. Plaintiff Trabuco Highlands Community Association opposes the motion and asks that it be awarded attorneys' fees of \$7,362.50. In its motion, defendant contends that, notwithstanding the cause of action for fraudulent conveyance in the complaint, plaintiff has not set forth a "real property claim" that can support a lis pendens because plaintiff seeks damages. It also contends that plaintiff cannot establish that it has a substantial probability of prevailing on its action. The motion was filed on May 11, 2026, exactly a week after the Court issued its order denying a motion by co-defendant Jennifer Loeffler to expunge the same lis pendens and for attorneys' fees and costs. (See minute order of May 4, 2026, ROA 647.) In its minute order, the Court rejected both contentions, stating as follows in its analysis:

	In its operative complaint, the HOA alleges that after it obtained a judgment against Loeffler in the underlying case, Loeffler fraudulently transferred her ownership of the subject property to an LLC of which she is the sole member in order to avoid enforcement of judgment against her. In the opening brief, Loeffler concedes the HOA has asserted a "real property claim." However, Defendant argues the HOA cannot prove the elements of (1) fraudulent intent, or (2) actual harm. She explains, "believing that the Association would not, and lawfully could not, enforce its judgment against the Subject Property, as it was her dwelling, and believing that the Association would instead seek to enforce its judgment, whenever it got around to it, by levying the property on which the assessments had been imposed, Loeffler felt free to transfer the Subject Property to a limited liability company for tax purposes and for her estate planning." (Motion, p. 4:23-27.) Loeffler asserts that there is no evidence she transferred the property to her LLC with fraudulent intent, and that the HOA was not harmed because the subject property is a principal residence which would not have been subject to judgment lien for a consumer debt. (Code Civ. Proc. § 699.730.) The HOA responds that there is substantial evidence of fraudulent intent, including (1) transfer to an insider, i.e. Loeffler's transfer of the property to the LLC which she solely owns for shares in the LLC, (2) Loeffler's retained control of the property, (3) context of the preexisting judgment, i.e. multiple actions to transfer Loeffler's interest in this and another property within four days after issuance of abstract of judgment which resulted in Loeffler personally becoming essentially insolvent. The HOA contends the property is not exempt from sale to satisfy the judgment, rather Loeffler may seek to claim a homestead exemption for only a portion of the sale proceeds. (Code Civ. Proc. §§ 704.740.) Moreover, Code of Civil Procedure section 699.710 does not preclude the HOA from attempting to enforce judgment via the subject property because the underlying judgment was not a consumer debt. Based on the evidence and legal argument presented at this stage, the HOA has met its burden of demonstrating it is more likely than not it will prevail. The context of Loeffler's multiple transfers of interests in real property within days of issuance of the abstract of judgment,
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	combined with the other circumstances of the transfers, support a finding of fraudulent intent. The question to what extent the property or some portion thereof may be subject to judgment enforcement actions need not be adjudicated at this time. But for purposes of this motion, Loeffler has not shown that as a matter of law the property is totally exempt from judgment enforcement. The HOA was seeking to enforce its judgment, which was largely for attorney fees and costs, which is not a consumer debt (money owed by reason of a "consumer credit transaction"), and although Loeffler may be able to obtain a homestead exemption she has not shown the entire property was exempt from judgment. Therefore, the HOA has demonstrated it will more likely than not prevail in voiding the transfer of property from Loeffler individually to the LLC wholly owned by Loeffler. For the first time in reply, Loeffler also argues this case does not involve a "real property claim" because the HOA seeks only monetary damages on its cause of action for voidable transfer. The Court declines to consider this new argument raised for the first time in reply because Loeffler changed her position and the HOA had no opportunity to respond. In opposing the motion, challenges the propriety of the motion under Code Civ. Proc. § 1008, referencing the co-defendant's unsuccessful motion and the order quoted above. It rightly contends that under section 1008, a party cannot bring repetitive motions for the same relief without demonstrating new or different facts, circumstances, or law. In fact, subdivision (a) of section 1008 provides: When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or
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	decisions were made, and what new or different facts, circumstances, or law are claimed to be shown. In addition, subdivision (e) states: This section specifies the court's jurisdiction with regard to applications for reconsideration of its orders and renewals of previous motions, and applies to all applications to reconsider any order of a judge or court, or for the renewal of a previous motion, whether the order deciding the previous matter or motion is interim or final. No application to reconsider any order or for the renewal of a previous motion may be considered by any judge or court unless made according to this section. Subdivision (d) states that “[a] violation of this section may be punished as a contempt and with sanctions as allowed by Section 128.7.” It also states that “an order made contrary to this section may be revoked by the judge or commissioner who made it, or vacated by a judge of the court in which the action or proceeding is pending.” Thus, because the motion seeks the same relief as the motion previously brought by co-defendant Loeffler, it is, as plaintiff contends, a motion for reconsideration of the motion denied on May 4, 2026. Defendant therefore was required to submit a declaration stating, among other things, new or different facts, circumstances, or law. Apparently recognizing that the motion was one for reconsideration, defense counsel submitted a declaration in which he declared that he had recently filed a motion on behalf of co-defendant Loeffler to expunge the same lis pendens and that the Court had denied the motion on May 4, 2026. He declared that “[t]he Court did not reach the issue of whether or not [plaintiff] stated a real property under [Code Civ. Proc. § 405.31], as the Court found that I raised the issue for the first time in my reply.” He declared that the Court also “rejected my contention that the judgment was subject to [Code Civ. Proc. § 699.730] based on an argument that neither party had raised or briefed.” He declared that “[both issues are brought before the Court, and possible for subsequent writ review, through the instant motion filed by Defendant 57 Molly Loop, LLC as a party aggrieved by the prior order.”
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		As plaintiff contends in its opposition, this declaration does not show any “new or different facts, circumstances, or law.” It simply shows that defendant wishes to make new arguments that the co-defendant could have made in the moving papers that she filed. Defendant’s procedural challenge to the motion is meritorious and the Court need not consider the merits. Although the responding plaintiff has asked for an award of attorneys’ fees of \$7,362.50 under the lis pendens statute, it has not set forth a basis for those fees in the declaration of attorney Amy M. Hammond.
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